

PETITION - ASK A NORTH DAKOTA COURT TO SEAL A FIRST MARIJUANA POSSESSION
CONVICTION

IN THE COURT

(Clerk of Court of the court holding the criminal case - see the filing instructions in this packet)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if the court assigns one at filing:

.....

MOTION TO SEAL A FIRST MARIJUANA OR THC POSSESSION CONVICTION (N.D.C.C. Sec.
19-03.1-23(9))

The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, applies to this court under N.D.C.C. Sec.
19-03.1-23(9); N.D.C.C. ch. 19-03.1 and states:

A. THE RELIEF THIS PETITION ASKS FOR, AS THE COMMITTED RECORD STATES IT

Where a person pleads guilty or is found guilty of a first offence of possessing one ounce or less of
marijuana or two grams or less of tetrahydrocannabinol and a judgment of guilt is entered, the court shall,
upon motion, seal the court record of that conviction if the person is not subsequently convicted within
two years of a further violation of the chapter. Relief is mandatory on the elements, and once sealed the
record may not be opened even by order of the court, which makes this seal stronger than Chapter 12-60.1
sealing.

B. THE PETITIONER

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record
itself.

[C1 - mj judgment date] On what date did the court enter the judgment of guilt?

.....

.....

[C2 - mj offence date] On what date did the offence occur?

.....

.....

[C3 - mj substance] Was the charge marijuana or tetrahydrocannabinol?

.....
.....

[C4 - mj quantity] What quantity was charged?

.....
.....

[C5 - mj first offence] Was this your first offence of this kind?

.....
.....

[C6 - mj subsequent conviction] Have you been convicted of any further violation of North Dakota's controlled substances chapter since, and if so when?

.....
.....

[C7 - mj other charges] Were there any other charges in the same case besides the marijuana or THC possession?

.....
.....

[C8 - mj case number] What is the case number?

.....
.....

[C9 - mj county] Which North Dakota county?

.....
.....

[C10 - mj court type] Was the case in district court or municipal court?

.....
.....

D. THE REQUEST

The petitioner asks the court to grant the relief described in paragraph A, under N.D.C.C. Sec. 19-03.1-23(9); N.D.C.C. ch. 19-03.1.

DATE SIGNATURE OF PETITIONER

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

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Route: obligation:track-pathway:ND:nd-marijuana-first-offense-seal:first-offense-possession-sealing

PROPOSED ORDER - ASK A NORTH DAKOTA COURT TO SEAL A FIRST MARIJUANA
POSSESSION CONVICTION

IN THE COURT
(Clerk of Court of the court holding the criminal case)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if one was assigned:

.....

PROPOSED ORDER

This matter came before the Court on the petition of the petitioner under N.D.C.C. Sec. 19-03.1-23(9);
N.D.C.C. ch. 19-03.1. The Court, having considered the petition and anything filed with it,

ORDERS that

(EVERY DECISION ON THIS PAGE IS THE COURT'S. This proposed order travels with the petition
for the Court's convenience; nothing on it is completed, decided, signed or dated by the petitioner or by
this packet.)

DATED

.....

(The court signs here if, and only if, it grants the petition.)

Route: obligation:track-pathway:ND:nd-marijuana-first-offense-seal:first-offense-possession-sealing

WHAT SEALING DOES, AND WHAT IT DOES NOT DO

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THE ORDER DOES

A sealing order under chapter 19-03.1 seals the court record in this case. The statute is unusually strong on this point: once sealed, the court record may not be opened even by court order.

WHAT IT DOES NOT REACH

The order is directed at the court record. It does not by itself change records held by other agencies, and it is not a pardon. If you need a criminal-history record corrected as well, that is a separate request to the agency that holds it.

THIS IS NOT THE GENERAL SEALING CHAPTER

North Dakota's general criminal-record sealing chapter, 12-60.1, uses waiting periods of three years for a misdemeanor and five for a felony, a clear-and-convincing burden, and a hearing no earlier than forty-five days after filing. None of that applies here. Chapter 19-03.1 makes sealing mandatory on motion when its own conditions are met.

Route: obligation:track-pathway:ND:nd-marijuana-first-offense-seal:first-offense-possession-sealing

FILING INSTRUCTIONS - ASK A NORTH DAKOTA COURT TO SEAL A FIRST MARIJUANA POSSESSION CONVICTION

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS SET OF PAPERS IS

Motion to Seal a First Marijuana or THC Possession Conviction (N.D.C.C. Sec. 19-03.1-23(9)).

Where a person pleads guilty or is found guilty of a first offence of possessing one ounce or less of marijuana or two grams or less of tetrahydrocannabinol and a judgment of guilt is entered, the court shall, upon motion, seal the court record of that conviction if the person is not subsequently convicted within two years of a further violation of the chapter. Relief is mandatory on the elements, and once sealed the record may not be opened even by order of the court, which makes this seal stronger than Chapter 12-60.1 sealing.

WHERE IT GOES

Clerk of Court of the court holding the criminal case

Filed as a motion in the existing case. The subsection states no service requirement and no hearing requirement.

Venue: The existing criminal case in the court that entered the judgment.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: none identified. The statewide fee schedule carries no line item for a motion in an existing criminal case. Fee waiver as recorded: not applicable; no fee is identified.

WHO MUST BE SERVED

Service as recorded: None stated by the subsection. Notice as recorded: None stated by the subsection.

WHAT THE RECORD SAYS YOU MUST KNOW

- This seal is irreversible: once sealed the court record may not be opened even by order of the court. The participant should keep their own copies of anything they may later need.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- Any uncertainty whether this was a first offence.
- Any uncertainty about the quantity charged.
- A subsequent controlled-substance conviction.
- Other charges in the same case, which the subsection does not reach.
- A participant confusing this with the executive marijuana pardon, which is an entirely separate process.

THE PAGES IN THIS SET

- nd-marijuana-first-offense-seal-primary-filing-1: the composed petition, on this route's own statutory ground (Ask a North Dakota court to seal a first marijuana possession conviction)
- nd-marijuana-first-offense-seal-proposed-order-2: the proposed order the court may sign; every decision line is the court's and is left blank (Ask a North Dakota court to seal a first marijuana possession conviction)
- nd-marijuana-first-offense-seal-legal-effect-explanation-3: what the sealing order does, what it does not reach, and why the general sealing chapter does not apply (Ask a North Dakota court to seal a first marijuana possession conviction)

Route: obligation:track-pathway:ND:nd-marijuana-first-offense-seal:first-offense-possession-sealing